

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
LAWRENCE ROGANTI

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK  
CITY POLICE DEPARTMENT, NYPD OFFICER  
STEVEN DAMIANI, EDWIN ORTA, RUBY  
REYES, NYPD POLICE OFFICERS JOHN DOES  
1-6, ADDITIONAL NEW YORK CITY POLICE  
OFFICERS Involved In The Occurrence Herein, Both  
Individually And In Their Official Capacities.

Defendants.

**Date Purchased:**

**Index No:**

Plaintiff Designates  
as the place of Trial  
Queens County

**SUMMONS**

Plaintiff Lawrence Roganti  
resides at 88-30 241<sup>st</sup>  
Street, Bellerose,  
New York 11426  
in the County of Queens

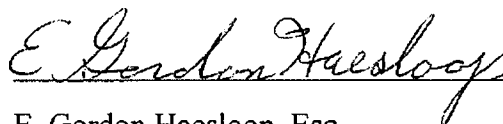
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To the above-named Defendants:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's Attorneys, at their address stated below, an Answer to the attached Complaint. If this Summons was personally served upon you in the State of New York, the Answer must be served within twenty days after such service of the Summons, excluding the date of service. If the Summons was not personally delivered to you within the State of New York, the Answer must be served within thirty days after service of the Summons is complete as provided by law. If you do not serve an Answer to the attached Complaint within the applicable time limitation stated above, a judgment may be entered against you, by default, for the relief demanded in the Complaint, without further notice to you. The action will be heard in the Supreme Court of the State of New York, in and

for the County of Queens. This action is brought in the County of Queens because it is the County where the incident complained of occurred.

DATED: Mineola, New York  
May 7, 2018

**RAISER & KENNIFF, P.C.**



E. Gordon Haesloop, Esq.  
300 Old Country Road, Suite 351  
Mineola, New York 11501  
(516) 742-7600 (t)  
(516) 742-7618 (f)  
gordon@raiserkenniff.com

Defendants' Addresses:

Colon & Peguero, LLP  
Attn: Michael N.J. Colon, Esq.

*Attorneys for the City of New York,*  
The New York City Police Department,  
NYPD Officer Steven Damiani,  
NYPD Police Officers JOHN  
DOES 1-6, Additional New York  
City Police Officers Involved In  
The Occurrence Herein, Both Individually  
And In Their Official Capacities

575 8<sup>th</sup> Avenue, Suite 1808  
New York, New York 10018

Edwin Orta

88-26 241<sup>st</sup> Street,  
Bellerose, New York 11426

Ruby Reyes

88-26 241<sup>st</sup> Street,  
Bellerose, New York 11426

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Plaintiff Designates  
as the place of Trial Queens  
County

**VERIFIED COMPLAINT**

Plaintiff Lawrence Roganti  
resides at 88-30 241<sup>st</sup> Street,  
Bellerose,  
New York 11426  
in the County of Queens

-----X

Lawrence Roganti ("Mr. Roganti" or "Plaintiff"), by his undersigned attorneys, Raiser & Kenniff, P.C., as and for his Verified Complaint against the City of New York (the "City"), the New York City Police Department (the "NYPD"), Edwin Orta ("Orta"), Ruby Reyes ("Reyes"), NYPD Officer Steven Damiani ("Damiani"), and NYPD POLICE OFFICERS John Does Numbers 1-6, unknown and intended to be named NYPD Officers involved in the occurrences herein, individually and in their respective capacities as members of the NYPD (collectively, the "Defendants"), hereby allege as follows:

**PRELIMINARY STATEMENT**

1. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, and Article I, §§ 11 and 12 of the New York State Constitution. Plaintiff brings this action for violations of civil rights, false

statements, false arrest, false imprisonment, malicious prosecution, negligent hiring, negligent training and supervision, and other wrongful acts by Defendants.

2. Plaintiff alleges that on or about May 11, 2017, at approximately 12:10 p.m., he was lawfully present on the front lawn of his neighbor's home located at 88-36 241<sup>st</sup> Street, Bellerose, New York, County of Queens, when he was approached by NYPD Officers who subsequently arrested him.

3. Edwin Orta and Ruby Reyes made false statements against Plaintiff alleging that he caused damage to Orta's vehicle by allegedly causing the side door of Mr. Roganti's home to collide with Orta's vehicle that was parked improperly on Plaintiff's property.

4. Plaintiff further alleges that based upon Orta's and Reyes' false statements, Plaintiff was falsely arrested and imprisoned on or about May 11, 2017, and maliciously prosecuted for the crime of criminal mischief.

5. Moreover, Plaintiff further alleges that a video-taped recording of the side door opening at the time in question clearly contradicted Orta's and Reyes' statements and demonstrated them to be false. However, the criminal case against Plaintiff dragged on for nine months in spite of exculpatory evidence, i.e. the Plaintiff's video tape, because the NYPD and the DA ignored this evidence. On or about January 30, 2018, the criminal case against Plaintiff was finally dismissed.

6. Plaintiff further alleges that Defendants caused Plaintiff severe injuries, including, but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, by reason of the intentional, malicious, willful, reckless, careless, and/or negligent conduct of Defendants, their agents, servants, employees, and/or licensees.

7. Plaintiff further alleges that the City and NYPD are individually, jointly and severally liable for the violations of Plaintiff's Constitutional rights, in that said defendants have:

(a) falsely arrested and imprisoned Plaintiff based upon false statements made by Orta and Reyes herein;

(b) maliciously prosecuted Plaintiff for crimes he did not commit;

(c) exhibited deliberate indifference to the exculpatory evidence in Plaintiff's criminal case, and allowed the unlawful prosecution to unreasonably drag on for nine months;

(d) failed to properly and adequately hire their agents, servants, employees, and/or licensees involved in the occurrences herein; and

(e) failed to properly train, instruct, supervise, and/or discipline their agents, servants, employees, and/or licensees involved in the occurrences herein.

#### **JURISDICTION AND VENUE**

8. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(a)(3) and (4), this being an action seeking redress, and to recover damages for violations of Plaintiff's Constitutional and civil rights.

9. This State Court may exercise jurisdiction over a 42 U.S.C §1983 Claim. See Haywood v. Drown, 556 U.S. 729, 731 (2009); Patsy v. Board of Regents of Florida, 457 U.S. 496, 506-07 (1982); Maine v. Thiboutot, 448 U.S. 1, 3 n.1 (1980).

#### **PARTIES**

10. Plaintiff was and is, at all relevant times herein, a resident of the County of Queens, State of New York.

11. Defendants Edwin Orta and Ruby Reyes were and are, at all relevant times herein, residents of the County of Queens, State of New York.

12. Defendant Damiani and John Does Numbers 1-6 and unknown Police Officers, were and are, at all times relevant herein, officers, employees, and agents of the Defendant NYPD, a municipal agency of the Defendant City.

13. At all times relevant herein, Damiani and John Does Numbers 1-6 and unknown Police Officers, were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for, and on behalf of, the City at all times relevant herein with the power and authority vested in them as officers, agents, and employees of the City and incidental to the pursuit of their duties as officers, employees, and agents of the City.

14. The Defendant City is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and a district attorney's office, which both act as its agents in the areas of law enforcement and criminal prosecution respectively, and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and a district attorney's office, and the employment of Police Officers and assistant district attorneys, as said risk attaches to the public consumers of the services provided by the City.

#### **STATEMENT OF FACTS**

15. On or about May 10, 2017, at approximately 6:00 p.m., Plaintiff was lawfully in his home at 88-30 241<sup>st</sup> Street, Bellerose, New York, County of Queens.

16. While lawfully present at his home, Plaintiff observed his neighbor, Reyes, park her car in a manner that infringed on his property. Plaintiff took photos of the vehicle on his property and proceeded to call the police.

17. Later that same day, when Plaintiff exited his home to throw out trash, Reyes screamed at Mr. Roganti.

18. After Reyes screamed at Mr. Roganti, police arrived and spoke to Mr. Roganti and then went over to speak to Reyes and Orta.

19. Police never examined where the vehicle was parked.

20. Orta and Reyes made false allegations to the police against Plaintiff, claiming that Plaintiff damaged their vehicle by opening the side door of Plaintiff's home into Orta's vehicle.

21. Plaintiff however, never made contact with Orta's and Reyes' vehicle, which was confirmed by a video tape of the argument.

22. After Orta's and Reyes' false statements were made, Damiani and an unknown NYPD Officer were sent to arrest Plaintiff, Plaintiff was then arrested on May 11, 2017 for criminal mischief, which was predicated on Orta's and Reyes' false statements.

23. Orta himself wrote and signed the Information as the complainant, in which he falsely alleged that Plaintiff damaged his property.

24. As a result of the arrest based on Orta's and Reyes' false statements, Plaintiff spent one day in jail.

25. Although there existed a video tape that documented the incident and demonstrated that Orta's and Reyes' statements were false, this video was ignored by the NYPD for the entire duration of the criminal litigation against Plaintiff.

26. After nine months of litigation, the criminal charges against Plaintiff were dismissed on or about January 30, 2018.

**FIRST CLAIM****VIOLATION OF RIGHTS SECURED BY 42 U.S.C. § 1983  
AND BY THE FOURTH AND FOURTEENTH AMENDMENTS  
OF THE UNITED STATES CONSTITUTION**

27. Each and every allegation set forth in the preceding paragraphs is incorporated herein by this reference with the same effect as if fully set forth herein.

28. At all times relevant herein, the conduct of the City, the NYPD, Damiani and NYPD Officers John Does Numbers 1-6 and unknown Police Officers (the “Municipal Defendants”) were subject to the provisions of 42 U.S.C. §§ 1983 and 1988.

29. As of May 11, 2017, there existed a clearly recognized federal right pursuant to the Fourth and Fourteenth Amendments of the United States Constitution to be free from unreasonable seizures by government actors, and deprivation of liberty without due process of law.

30. The conduct and actions of the Municipal Defendants, acting jointly and severally with Orta and Reyes, under color of state law, in unlawfully arresting and imprisoning Plaintiff in response to false statements by Orta and Reyes, in unlawfully prosecuting Plaintiff for crimes he did not commit, and in ignoring exculpatory evidence establishing Plaintiff’s innocence and the falsity of Orta’s and Reyes’ statements, was done intentionally, maliciously, negligently, and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to cause and did cause damage to Plaintiff’s reputation, loss of wages and employment, legal fees, and related damages in violation of Plaintiff’s Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the U.S. Constitution.

31. As a direct and proximate result of the Municipal Defendants' wrongful acts, policies, practices, customs, and/or usages complained of herein, the Plaintiff suffered injuries and damages, including but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, without any negligence on the part of Plaintiff contributing thereto.

### **SECOND CLAIM**

#### **VIOLATION OF RIGHTS SECURED BY 42 U.S.C. §1983 AND BY THE EIGHTH AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION BY FAILING TO PROTECT THE PLAINTIFF FROM UNCONSTITUTIONAL HARM**

32. Each and every allegation set forth in the preceding paragraphs is incorporated herein by this reference with the same effect as if fully set forth herein.

33. As of May 11, 2017, there existed a clearly recognized civil right to be free from wrongful and/or illegal acts which would violate the rights guaranteed to Plaintiff under the Constitution and laws of the United States and the State of New York.

34. The conduct and actions of the Municipal Defendants, acting jointly and severally with Orta and Reyes under color of state law, failing to take any steps to protect Plaintiff from unjustified arrest, imprisonment, and prosecution was done intentionally, maliciously, negligently, and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to cause and did cause damage to Plaintiff's reputation, loss of wages and employment, legal fees, and related damages in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the U.S. Constitution.

35. As a direct and proximate result of the Municipal Defendants' wrongful acts, policies, practices, customs, and/or usages complained of herein, the Plaintiff suffered injuries and

damages, including but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, without any negligence on the part of Plaintiff contributing thereto.

### **THIRD CLAIM**

#### **FALSE STATEMENTS BY ORTA AND REYES**

36. Each and every allegation set forth in the preceding paragraphs is incorporated herein by this reference with the same effect as if fully set forth herein.

37. After starting a verbal argument with Plaintiff, Orta and Reyes made these statements knowing that they were false and with the specific intent of having Plaintiff arrested for a crime he did not commit.

38. In order to support the unlawful arrest of Plaintiff, Orta wrote and signed the supporting deposition charging Plaintiff with criminal mischief in which he falsely claimed that Plaintiff damaged his property.

39. A video tape of the argument between Plaintiff and the Reyes confirmed that Plaintiff did not in fact damage any property, thereby establishing the Orta's and Reyes' statements as false.

40. As a direct and proximate result of Orta's and Reyes' false statements, Plaintiff was unlawfully arrested for public criminal mischief.

41. As a direct and proximate result of the false arrest based on the Orta's and Reyes' false statements, Plaintiff was forced to spend nine months of his life defending against the unjustified charges, which required him to retain an attorney and pay legal fees in connection with his criminal defense.

42. As a direct and proximate result of the Orta's and Reyes' false statements, Plaintiff suffered injuries and damages, including but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, without any negligence on the part of Plaintiff contributing thereto.

#### **FOURTH CLAIM**

##### **FALSE ARREST AND FALSE IMPRISONMENT**

43. Each and every allegation set forth in the preceding paragraphs is incorporated herein by this reference with the same effect as if fully set forth herein.

44. Defendants NYPD, Damiani, and the NYPD Officers John Does Numbers 1-6 and unknown Police Officers, acting individually and in concert with Orta and Reyes, intentionally and deliberately falsely detained, arrested, restrained, and imprisoned Plaintiff as a result of the false statements by Orta and Reyes accusing Plaintiff of criminal mischief.

45. Defendants NYPD, Damiani, and the NYPD Officers John Does Numbers 1-6 and unknown Police Officers arrested Plaintiff, they were deliberately indifferent to the video tape of the argument establishing Plaintiff's innocence and the falsity of the Orta's and Reyes' statements.

46. As a result of the false arrest, Plaintiff spent one day in jail.

47. Plaintiff was conscious of his confinement in jail in connection with the unjustified charges against him, and did not consent to the confinement.

48. The confinement of Plaintiff in jail was not otherwise privileged.

49. As a direct and proximate result of the Defendants' wrongful acts, policies, practices, customs, and/or usages complained of herein, Plaintiff suffered injuries and damages, including but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and

employment, legal fees, and related damages, without any negligence on the part of Plaintiff contributing thereto.

**FIFTH CLAIM**

**MALICIOUS PROSECUTION**

50. Each and every allegation set forth in the preceding paragraphs is incorporated herein by this reference with the same effect as if fully set forth herein.

51. The actions of the Orta and Reyes, the NYPD, Damiani, and the NYPD Officers John Does Numbers 1-6 and unknown Police Officers, acting individually and in concert, intentionally and deliberately led to a malicious prosecution of Plaintiff by the DA for criminal mischief.

52. A judicial proceeding was commenced and prosecuted against Plaintiff at the insistence of Orta and Reyes, who placed pressure on Damiani and an unknown NYPD Officers to initially arrest Plaintiff.

53. Upon information and belief, during the judicial proceeding, Orta and Reyes falsely authored a supporting deposition, and the DA was deliberately indifferent to a video tape establishing Plaintiff's innocence of the crimes he was charged with, revealing that Orta's and Reyes' statements against Plaintiff were false.

54. As a result of the DA's willful ignorance to the exculpatory evidence in Plaintiff's case and the DA's inattention to the Plaintiff's criminal case, the judicial proceeding lasted nine months.

55. This judicial proceeding was undertaken without probable cause and with malice aforethought.

56. The judicial proceeding was terminated in favor of Plaintiff on or about January 30, 2018.

57. Plaintiff was injured by having to go through this judicial proceeding and suffered interference with his person, reputation, wages, and employment as a result of this proceeding.

58. As a direct and proximate result of the Defendants' wrongful acts, policies, practices, customs, and/or usages complained of herein, Plaintiff suffered injuries and damages, including but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, without any negligence on the part of Plaintiff contributing thereto.

### **SIXTH CLAIM**

#### **CLAIM OF NEGLIGENT HIRING, TRAINING AND SUPERVISION AGAINST THE CITY AND THE NYPD**

59. Each and every allegation set forth in the preceding paragraphs is incorporated herein by this reference with the same effect as if fully set forth herein.

60. At all times relevant herein, the City and the NYPD have been grossly negligent and negligent in the hiring, supervision, training, and monitoring of their officers, agents, and employees responsible for law enforcement, the investigation of alleged criminal activity, and the prosecution of said criminal activity.

61. As a result of the City's and the NYPD's failure to properly hire, supervise, train, and monitor their officers, agents, and employees, Plaintiff was falsely arrested, falsely imprisoned, and maliciously prosecuted for the alleged crime of criminal mischief, which was predicated on false statements given by Orta and Reyes.

62. As a result of the City's and the NYPD's failure to properly hire, supervise, train, and monitor their officers, agents, and employees, the exculpatory evidence of a video tape showing that Plaintiff did not damage Orta's property was completely and deliberately ignored, and this

willful ignorance, combined with the DA's inattentive treatment of Plaintiff's criminal case, resulted in Plaintiff spending nine months defending against warrantless criminal charges.

63. As a direct and proximate result of the Defendants' wrongful acts, policies, practices, customs, and/or usages complained of herein, Plaintiff suffered injuries and damages, including but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, without any negligence on the part of Plaintiff contributing thereto.

PRAYER FOR RELIEF

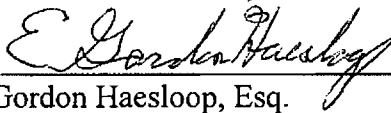
WHEREFORE, Plaintiff demands the following relief jointly and severally against the Defendants:

- (a) Compensatory damages;
- (b) Punitive damages;
- (c) The convening and empaneling of a jury to consider the merits of the claims herein;
- (d) Costs and interest and attorneys' fees; and
- (e) Granting such other and further relief as the Court may deem just and proper.

Dated: Mineola, New York  
May 7, 2018

Respectfully submitted,

RAISER & KENNIFF, P.C.

By: 

E. Gordon Haesloop, Esq.  
300 Old Country Road, Suite 351  
Mineola, New York 11501  
(516) 742-7600  
gordon@raiserkenniff.com

Attorneys For Plaintiff

## VERIFICATION

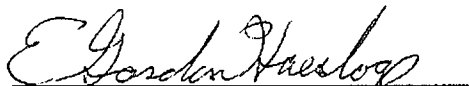
STATE OF NEW YORK     )  
                                      ) ss.:  
COUNTY OF NASSAU     )

E. GORDON HAESLOOP, ESQ. being sworn, deposes and says:

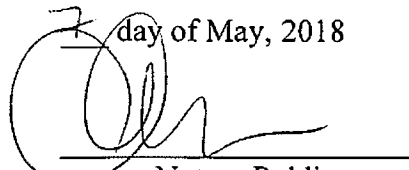
He is an attorney for LAWRENCE ROGANTI, Plaintiff in the within action; he has read the within Verified Summons and Complaint and knows the contents thereof; and the same is true to his own knowledge, except and to the matters herein stated to be alleged upon information and belief, and as to those matters, he believes them to be true.

The source of his information and knowledge are based upon an investigation of the records on file.

The reason this Verification is being made by deponent and not by the Plaintiff is that the Plaintiff is not within the county where deponent has his office.

  
E. GORDON HAESLOOP, ESQ.

Sworn to before me this

  
7 day of May, 2018

Notary Public

CHRISTINE MEEHAN  
NOTARY PUBLIC, State of New York  
No. 01ME6226144  
Qualified in Nassau County  
Commission Expires August 02, 2019